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SECURITIES AND EXCHANGE BOARD OF INDIA

NOTIFICATION

Mumbai, the 16 AUGUST, 2011

SECURITIES AND EXCHANGE BOARD OF INDIA

(REGISTRARS TO AN ISSUE AND SHARE TRANSFER AGENTS)

(SECOND AMENDMENT) REGULATIONS, 2011

No. **LAD-NRO/GN/2011-12/18/26148**-In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following Regulations to amend the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) Regulations, 1993, namely:-

1. These Regulations may be called the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Second Amendment) Regulations, 2011.

2. They shall come into force on the date of their publication in the Official Gazette.

3. In Regulation 7, sub-regulation (2),

(a) in clause (a), for the word and figures “Rs.6,00,000”, the symbol and figures “₹50,00,000” shall be substituted;

(b) in clause (b), for the word and figures “Rs.3,00,000”, the symbol and figures “₹25,00,000” shall be substituted;

(c) after clause (b), and before the existing proviso, the following proviso shall be inserted, namely:-

“Provided that a registrar to an issue or a share transfer agent, who was granted a certificate of initial or permanent registration, as the case may be, under these regulations prior to the commencement of the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Second Amendment) Regulations, 2011, shall raise its networth to the said minimum within a period of three years from such commencement.”

(d) in the existing proviso, after the word “Provided”, the word “further” shall be inserted.

U. K. SINHA

CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnotes:

1. The principal regulations Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) Regulations, 1993 were published in Official Gazette of India on May 31, 1993 vide F.No.SEBI/LE/5/93.

2. The Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) Regulations, 1993 were subsequently amended on:

(a) November 28, 1995 by the Securities and Exchange Board of India (Payment of Fees) (Amendment) Regulations, 1995 vide No. S.O. 939 (E);

(b) September 17, 1997 by Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Amendment) Regulations, 1997 vide No. S.O. 660 (E);

(c) January 5, 1998 by the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Amendment) Regulations, 1998 vide No. S.O. 14 (E);

- (d) September 30, 1999 by the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Amendment) Regulations, 1999 vide No. S.O. 796 (E);
- (e) November 17, 1999 by Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Second Amendment) Regulations, 1999 vide No. S.O. 1120 (E);
- (f) March 28, 2000 by the Securities and Exchange Board of India (Appeal to Securities Appellate Tribunal) (Amendment) Regulations, 2000 vide No. S.O. 278 (E);
- (g) May 29, 2001 by the Securities and Exchange Board of India (Investment Advice by Intermediaries) (Amendment) Regulations, 2001 vide No. S.O. 476 (E);
- (h) September 27, 2002 by the Securities and Exchange Board of India (Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) Regulations, 2002 vide No. S.O. 1045 (E);
- (i) October 1, 2003 by the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Amendment) Regulations, 2003 vide No. S.O. 1157 (E);
- (j) March 10, 2004 by the Securities and Exchange Board of India (Criteria for Fit and Proper Person) Regulations, 2004 vide S.O. No. 398(E);
- (k) September 7, 2006 by the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Amendment) Regulations, 2006 vide S.O. No. 1452 (E);
- (l) May 26, 2008 by the Securities and Exchange Board of India (Intermediaries) Regulations, 2008 vide Notification No. LAD/NRO/GN/2008/11/126538;
- (m) August 26, 2009 by the Securities and Exchange Board of India (Issue of Capital and Disclosure Requirements) Regulations, 2009 vide Notification No. LAD/NRO/GN/2009-10/15/174471;
- (n) April 19, 2011 by the Securities and Exchange Board of India (Change in Conditions of Registration of Certain Intermediaries) (Amendment) Regulations, 2011 vide Notification No. LAD/ NRO/ GN/ 2011-12/03/12650;
- (o) July 05, 2011 by the Securities and Exchange Board of India (Registrars to an Issue and Share Transfer Agents) (Amendment) Regulations, 2011 vide Notification No. LAD-NRO/GN/2011-12/11/21228.
